

STATE OF SOUTH CAROLINA)
)
COUNTY OF YORK) ORDINANCE 4__
)
CITY OF TEGA CAY)

AN ORDINANCE TO PROVIDE FOR THE BUDGET OF THE CITY OF TEGA CAY STORM WATER UTILITY DEPARTMENT (TCSUD) FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2014, AND ENDING SEPTEMBER 30, 2015, TO PROVIDE FOR THE RECEIPT AND EXPENDITURE OF FUNDS, AND OTHER MATTERS RELATED HERETO.

BE IT ORDAINED by the Mayor and City Council of the City of Tega Cay duly assembled:

SECTION 1- Annual TCSUD Budget. For the purposes of providing for the orderly administration of TCSUD operations, there is hereby enacted an annual budget for all revenues for TCSUD, for the Fiscal Year 2014-2015, commencing October 1, 2014, and ending September 30, 2015. The Annual TCSUD Budget for Fiscal Year 2014-2015 is appended hereto and made a part of this Ordinance.

SECTION 2 - Revenue. In order to provide services to the customers of TCSUD and to provide for the public health and welfare of our community, the TCSUD FY 2014-2015 anticipates and forecasts the following revenue and revenue sources for the TCSUD Fund:

Storm Water Utility Fee	\$397,242
TOTAL BUDGET	\$397,242

SECTION 3 – Charges and Fees. Pursuant to South Carolina Code, the City of Tega Cay Storm Water Utility Department will assess customers of TCSUD service charges and fees necessary to support TCSUD operations and development needs as prescribed by City Council and City staff. Such service charges and fees are included on the attached Exhibit A.

SECTION 4 - TCSUD Fee Billing. Annual billings will be mailed and collected pursuant to applicable City Ordinances.

SECTION 5 - Receipt of Funds. The City Finance Director, or his/her designee, shall deposit TCSUD Account Funds paid to the account of TCSUD in such bank accounts as deemed advisable. TCSUD funds received by any other official or employee of the City shall be paid over daily to the City Finance Director, or his/her designee. The City Finance Director, or his/her designee, shall establish an accounting system which shall ensure the proper segregation of funds prescribed by this Ordinance and further shall segregate all funds received from special projects, state or federal programs, if so required, so that such funds are not co-mingled with funds received pursuant to this Ordinance for the general operation of TCSUD.

SECTION 6 - Accounting. The City Staff is directed to maintain special projects, state or federal programs in a separate and segregated account, which may be transferred to the Storm Water Utility Fund as needed. The City Staff shall adhere to the regulations of the United States Department of the Treasury with respect to the administration and expenditure of such funds.

SECTION 7 - Distribution of Funds. All funds shall be disbursed in accordance with the procurement

procedures of the City of Tega Cay and in accordance with pertinent federal and state laws and regulations.

SECTION 8 - Budget Year and Closing of Accounts. The budget year shall expire on September 30, 2015. No funds shall be disbursed pursuant to this Ordinance unless such funds have been obligated prior to the close of the budget year. Within the meaning of this Section, the term "obligated" shall be deemed to include the placing of an order or the signing of a contract for the delivery of goods or services. In the event that funds are obligated during the budget year, they must be actually expended and disbursed within sixty (60) days from the closing of the budget year.

SECTION 9 - Appropriations. For the fiscal year commencing October 1, 2014 and ending September 30, 2015, the following budget appropriations are adopted:

Personnel	\$156,158
Operations and Maintenance	\$160,306
Debt Service	\$80,778
Reserve/Contingency	\$0
TOTAL BUDGET	\$397,242

SECTION 10 - Fiscal Administration. TCSUD warrants that all applicable City, State and Federal Codes will be followed in the administration of the FY 2014-2015 TCSUD budget. These Codes include, but are not limited to, regulation of borrowing funds, fiscal controls, independent auditing, and the purchase of goods and services. Should there arise a need to deviate from City code to meet TCSUD needs, no derivation from City codes will be implemented without the prior consent, through formal action, of City Council.

SECTION 11 - Power of City Council. The City Council may authorize the transfer of funds within any of TCSUD's various accounts by resolution. Pursuant to the South Carolina Code of Law, the City Council may authorize TCSUD to incur long-term indebtedness through bonds, leases or other legally acceptable instruments.

SECTION 12 - Date Effective. This Ordinance shall become effective October 1, 2014 and shall expire on September 30, 2015.

This ordinance shall take effect immediately upon its final passage.

PUBLIC HEARING: _____
FIRST READING: _____
SECOND READING: _____

Enacted this ____ day of September, 2014, by a majority vote of the duly elected City Council of the City of Tega Cay.

[Signature Page to Follow]

SIGNED:

George Sheppard, Mayor

Jennifer Stalford, Mayor Pro Tempore

Dottie Hersey, Council Member

Ron Kirby, Council Member

ATTEST:

Charlie Funderburk, City Manager

Chris Landvik-Larsen, Council Member

Certificate of Adoption

I hereby certify that the foregoing is a true copy of the ordinance passed at the regular meeting of the City Council of the City of Tega Cay, South Carolina, held on the ____ day of September, 2014.

Katie Poulsen

Municipal Clerk

STORMWATER FY 14-15 BUDGET

REVENUES		Budget 13-14	YTD 7/18/14	Budget 14-15
3000-1000	Stormwater Fees	388,333	393,666	397,242
3000-2008	Stormwater Delinquent	-	3,078	0
3000-3500	Penalties	-	763	0
3000-3600	Court Fees	-	140	0
TOTAL REVENUES		388,333	397,647	397,242

EXPENDITURES		Budget 13-14	YTD 7/18/14	Budget 14-15
4323-0100	Salaries & Wages	120,307	99,538	119,112
4323-0200	Overtime	1,500	642	1,500
4323-0500	FICA	9,318	7,475	9,227
4323-0600	Retirement	12,729	10,606	12,966
4323-0700	Insurance	7,175	6,940	10,353
4323-0900	Workers Compensation	2,500	3,015	3,000
4323-1300	Professional Services	-	-	15,000
4323-2500	Contracted Services	75,000	31,437	-
4323-2700	Small Tools	1,000	248	-
4323-2800	Office Expense &Supplies	500	204	500
4323-2850	NPDES Permit	2,000	2,000	2,000
4323-2900	Other Expenses	500	1,185	-
4323-3100	Travel & Training	500	-	500
4323-3200	Auto Expense	20,000	20,437	26,000
4323-4200	Maintenance & Repairs	0	-	0
4323-4300	Software Maint.*****	3,276	4,032	3,200
4323-4400	Vehicle Maintenance	12,000	14,394	18,000
4323-4700	Maint Materials	12,000	4,150	91,756
4323-7200	Dues & Subscriptions	350	175	350
4323-7250	Property Ins	1,200	2,669	3,000
4323-7300	System evaluation	5,000	-	-
4323-9100	Vehicle Lease*****	74,630	55,069	58,626
4323-9300	Bond Payment	22,152	20,820	22,152
4323-9400	FUND BAL	4,696	0	0
TOTAL EXPENDITURES		388,333	285,036	397,242

EXHIBIT A

Schedule of Fees for TCSUD



City of Tega Cay
Storm Water Fee Schedule
Effective October 01, 2014

DESCRIPTION		FEE
Storm Water Fees	ERU (<i>Equivalent Residential Unit</i>)	3,500 sq. ft.
	Developed Residential Property	\$96
	Commercial/ Industrial Property	\$96/ ERU
	Connection to Storm Sewer System	\$50/ connection
	Illicit Connection to Storm Sewer System	\$150 + Court Costs/Fees
	Failure to Maintain Erosion Control Measures	\$150/occurrence (<i>each day constitutes a new occurrence</i>)